

Sunil Yadav v. State of U.P. (Clause 6.8 assessment — objections directed)

Allahabad High Court · Division Bench · 24 May 2018 · WRIT - C No. 18857 of 2018 · **Writ disposed; objections to EE; recovery to abide; s.127 residual**

HEADNOTE

Sunil Yadav challenged a consumption-bill assessment as violating Clause 6.8 of the U.P. Electricity Supply Code, 2005, alleging that provisional assessment was not made as prescribed and no final order followed after an opportunity to object. The licensee stated that, objections not having been filed in time, the provisional assessment was treated as final and recovery had begun. Without deciding those contentions, the Court directed the petitioner to file objections before the Executive Engineer, Ghaziabad within ten days; that officer is to pass an appropriate order in accordance with law; recovery shall abide that order; and any remaining grievance may be taken under Section 127 of the Electricity Act, 2003.

FACTUAL SUMMARY

Sunil Yadav petitioned the Allahabad High Court against an electricity consumption-bill assessment. He alleged violation of Clause 6.8 of the U.P. Electricity Supply Code, 2005: the provisional assessment was not made as prescribed, and no final order followed after an opportunity to object. Counsel for the Executive Engineer, Ghaziabad, stated on instructions that because objections were not filed in time, the provisional assessment had been treated as final and recovery proceedings had begun.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

objections-to-provisional-assessment

HOLDING

Where a consumer challenges a consumption-bill assessment as having been made without following Clause 6.8—no proper provisional assessment and no final order after opportunity to object—and the licensee treats the provisional assessment as final for want of timely objection, the High Court may, without deciding those contentions, direct the consumer to file objections before the assessing officer, who shall pass an appropriate order in accordance with law, with recovery to abide that order, leaving any remaining grievance to an appeal under Section 127 of the Electricity Act, 2003. ¶ 1

FLAG Court referred to 'Section 127 of the U.P. Electricity Act, 2003'; the appeal lies under s.127 of the Electricity Act, 2003.

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ASSESSMENT VIOLATED CLAUSE 6.8 OF THE U.P. ELECTRICITY SUPPLY CODE, 2005

The Court did not examine the petitioner's challenge that provisional assessment was not carried out as prescribed. ¶ 1

NOT DECIDED — WHETHER NON-FILING OF TIMELY OBJECTIONS CONVERTED THE PROVISIONAL ASSESSMENT INTO A FINAL ASSESSMENT ORDER

The licensee's contention was recorded but not decided; objections were directed to be filed and a fresh order to be passed. ¶ 1